# Harbor Point Mutual Auto Insurance

Bodily Injury Unit

## Claim Notes

| | |
|---|---|
| **Claim number:** | C-1375 |
| **Claimant:** | John Buckley |
| **Adjuster:** | Darin Tyler |

2024-05-26 - Claim opened following report of a low-speed colilsion in a parking lot. Insured vehicle reversed into a stationary claimant vehicle. Police not called; both parties exchanged information at the scene. Photos of both vehicles received from insured. Liability appears probable against insured pending review of the photos and statements.

2024-06-02 - Claimant has retained counsel. Representation letter received requesting that all further contact be directed to counsel's office. Claimant reports neck and lower back pain following the impact and has been advised to seek medical evaluation. Claim file updated to reflect attorney representation.

2024-06-03 - Demand package received from claimant's counsel. Documentation includes initial urgent care visit notes diagnosing a lumbar strain, a physical therapy referral, and a request for records covernig the prior five years. Records request has been sent to the medical provider. Reserve reviewed and adjusted to reflect the reported injury.

2024-06-12 - Insured interviewed by phone. Insured confirms reversing from a parking space and did not see the claimant vehicle in the mirror. Insured states the lot was busy and no horn or warning was heard. Statement recorded and filed. Independent appraisal of claimant vehicle scheduled.

2024-06-15 - Counsel's office contacted to confirm receipt of medical authorizations and to request an estimate of physical therapy visits to date. Liability position remains with insured. Injury evaluation pending receipt of records. File diary set for follow-up in thirty days.

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Bodily Injury Unit

## Recorded Statement

| | |
|---|---|
| **Claim number:** | C-1375 |
| **Statement of:** | John Buckley |
| **Taken by:** | Darin Tyler |
| **Date:** | 2024-05-27 |

Q: Thank you for taking the time to give this reocrded statement. Please state your full name for the record.

A: I'd rather just keep my name off the recording, if that's okay. You already have it on the claim.

Q: That's fine. Can you tell me where you were when the collision happened?

A: I was in the parking lot of a shopping center in Katy, Texas. I had just pulled into a space near the main entrance.

Q: Were you driving, or were you parked?

A: I was driving. I was backing out of the space when another vehicle came down the aisle and clipped the rear of my car.

Q: How fast would you estimate you were going at the time of impact?

A: I was barely moving, maybe three or four miles an hour. It was more of a bump than a crash.

Q: Did you notice the other vehicle before it reached you?

A: Not really. I was checking my mirror on the driver's side and didn't see it until the contact.

Q: Did you get out of your vehicle and speak with the other driver?

A: Yes, we exchanged information. He seemed fine and apologized.

Q: Have you sought medical attention since the collision?

A: Yes, I went to urgent care the same day. My lower back was sore and tight, and they diagnosed a back strain.

Q: Are you currently experiencing any pain or limitations?

A: Yes, I have trouble sitting for long periods and bending over. I've been doing some stretching and taking over-the-counter pain relievers.

Q: Have you missed any work because of your back?

A: I missed two days and I'm working lighter duty now. My employer has been accommodating.

Q: Before this collision, had you ever injured your back or received treatment for back pain?

A: Not that I can recall. I've had normal aches now and then, but nothing that required a doctor.

Q: Is there anything else you'd like to add to your statement?

A: Only that I'm cooperating fully and I'd appreciate a prompt response on the claim.

Q: Thank you. This concludes the recorded statement.

A: Thanks for your time.